

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

IVONNE VANESSA MONTOYA RAMIREZ,

Petitioner

VS.

DARVIN NOE REYES CRUZ,

Respondent

) Case Number: FDI-24-800383

) Hearing Date: June 25, 2026

) Hearing Time: 1:30 PM

) Department: 414

) Presiding: MUJDAH RAHIM

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Ivonne Vanessa Montoya Ramirez (Mother) and Respondent Darwin Noe Rey Cruz (Father). There is one minor child subject to this proceeding: Damian Noe Reyes Montoya (DOB: 05/09/2015). This case was initially filed in Contra Costa County (i.e., the Superior Court of Contra Costa County).
- 2) On 07/02/2019, the Superior Court of Contra Costa County entered a judgement that incorporated the 04/23/2019 Findings and Order After Hearing, which:
 - a. Granted the parties joint legal custody of the minor child;
 - b. Granted Mother sole physical custody of the minor child;
 - c. Incorporated the 04/05/2019 mediation agreement between Mother and Father. The 04/05/2019 mediation agreement reached the following understanding regarding the custody and visitation of the minor child:
 - i. Father will provide the child's physical care:
 1. Every Tuesday, Thursday, and Sunday from 4:30 PM to 10:00 PM;

2. Other times decided by mutual agreement.

- ii. Mother shall provide the child's physical care when the child is not otherwise scheduled or mutually agreed between the parents to be in Father's physical care.
- iii. Parents will alternate or share the holidays by mutual agreement. [Both parties confirm they can arrange the holidays by mutual agreement.] Holidays shall take precedence over but not otherwise change the regular physical care schedule.
- iv. Parents will arrange vacation time with and without the child by mutual agreement.
- v. Neither parent will schedule activities for the child during the other parent's scheduled parenting time without the other parent's prior agreement.
- vi. The child must not be left without age-appropriate supervision.
- vii. The parents must let each other know the name, address, and phone number of the child's regular child-care providers and provide his/her own phone number to each child-care provider to be used in the event of an emergency.
- viii. Neither parent shall engage in violent or verbally abusive behavior in their child's presence or hearing.
- ix. Neither parent shall administer or permit anyone else to administer discipline to the child that causes the child physical pain or the threat of physical pain.
- x. The parent receiving the child into his/her care shall be responsible for providing transportation.
- xi. Neither parent will make or allow others to make negative comments about the other parent or the other parent's past or present relationships, family, or friends within hearing distance of the child.
- xii. The parents shall communicate directly with each other on matters concerning the child and shall not use the child as a messenger between them.
- xiii. Neither parent shall discuss or permit others to discuss in the child's presence or hearing any court cases or parental disputes (except appropriately in the context of counseling with the counselor's guidance and approval).

- xiv. Each parent must notify the other parent thirty (30) days prior to any planned change in residence. Neither parent may use such information for the purpose of harassing, annoying, or disturbing the peace of the other or invading the other's privacy. If a parent has an address with the State of California's Safe at Home confidential address program, no residence or work address is needed.
- xv. Each parent shall keep the other promptly informed of all significant information regarding the child's health, education, and welfare.
- xvi. Each parent must notify the other parent of his or her current address, telephone number and email address within twenty-four (24) hours of any change in his or her residence, mailing address, work address, home phone, work phone or email address.
- xvii. Each parent shall have the right to liberal surface mail, e-mail, telephone, and other available communication with the child.
- xviii. Each parent shall permit the child to contact the other parent any time the child expresses the wish to do so.
- xix. The terms and conditions of this order may be added to or changed as the needs of the child and parents change. Such changes will be in writing, dated and signed by both parents; each parent will retain a copy. If the parents want a change to be a court order, it must first be filed with the court in the form of a court document.

3) On 08/23/2024, the Court transferred venue to the Superior Court of San Francisco County.

4) On 04/03/2026, Mother filed a Request for Order seeking modification of child custody and visitation, requesting that:

- a. All orders under the April 23, 2019 custody and visitation order ("2019 order") not in conflict with any subsequent order shall remain in full force and effect.
- b. Mother shall have sole legal custody.
- c. Father's parenting time schedule be changed to the following:

- i. Father shall have parenting time on Friday and Saturday, as follows: Fridays from 2:05 PM (after school) until 7:35 PM; and Saturdays from 12:00 PM to 5:30 PM
 - ii. Friday pick-ups shall occur at child's school. Otherwise, exchanges shall occur at Mother's home. During exchanges, child shall be picked up and dropped off from the front of the Mother's home.
 - iii. Any make-up parenting time shall be agreed to by the parties.
 - iv. Should any of Father's make-up parenting time occur on a school day, Father's parenting time shall begin after school and Father shall pick up child from school at the beginning of the visit.
 - v. Father shall provide transportation for all exchanges.
 - d. Parties shall not have third-parties present during exchanges.
 - e. Parties shall communicate through TalkingParents App or Family Wizard.
 - f. This Court shall conduct a Tier II interview of child's therapist.
 - g. This Court shall order a Tier II interview of Damien's social worker.
- 5) On 04/10/2026, Mother filed a Proof of Service indicating that her 04/03/26 Request for Order was served on Father by personal service on 04/07/26, which is timely service.
- 6) On 04/17/2026, Father filed a Responsive Declaration in opposition to Mother's Request for Order. Father requested:
- a. Joint legal custody and frequent parenting time;
 - b. Care of the child weekdays from 3:00 PM to 9:00 PM;
 - c. Parenting time with the child from Friday 3:00 PM to Sunday 9:00 PM.
- 7) On 4/20/2026, Father filed a Proof of Service indicating that his 04/17/26 Responsive Declaration was served on Mother by mail on 04/17/26, which is timely service.
- 8) On May 4, 2026, the matter was heard on the Court's Readiness calendar in Department 404. The parties were referred to Family Court Services (FCS) mediation to occur on 6/12/2026. At this hearing, both parties stipulated to Commissioner Rahim hearing the matter and the matter was continued to 6/25/2026 at 1:30 p.m. in Department 414.

1 9) On 06/12/2026, both parties attended mediation with Family Court Service (FCS) but did not
2 reach an agreement.

3 **B. Findings and Order**

4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 child is the United States.

8 2) The Court confirms the prior order that both parents shall share joint legal custody and Mother
9 shall have sole physical custody.

10 3) Effective June 29, 2026, Father shall have parenting time every Monday, Tuesday and
11 Wednesday afterschool until 9 p.m. and every Sunday 9 a.m. to 9 p.m.

12 4) On school days, Father shall pick-up afterschool and drop off shall take place at the San
13 Francisco Police Department. On Sundays' pick-up and drop off shall take place at the San
14 Francisco Police Department. No third parties are allowed to be present unless there is an
15 emergency. In the event of an emergency, the other party shall notify the other parent thirty (30)
16 minutes prior to pick-up or drop-off.

17 5) The parties shall register and maintain active accounts with Our Family Wizard. All non-
18 emergency communications regarding the child, including scheduling, exchanges, school matters,
19 medical information, and other co-parenting issues, shall be conducted through Our Family
20 Wizard. The parties shall communicate respectfully and shall regularly monitor the platform for
21 messages and updates.

22 6) The parties shall maintain a shared Google Drive document to record the child's daily care. Each
23 party shall document all medications administered, including the date, and time, as well as the
24 child's meals and snacks. The document shall be updated no later than 8:00 a.m. each morning to
25 reflect all information from the preceding 24-hour period. Both parties shall have continuous
26 access to the document and shall ensure that the information entered is accurate and complete.

27 7) Petitioner's request for a Tier II interview with child's therapist and social worker is DENIED
28 without prejudice.

29 8) All prior orders, not in conflict with the orders made herein, shall remain in full force and effect.

9) The Court will prepare the Findings and Order After Hearing.